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File No.: EXP202207199

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on June 22, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“has rented a room with access to a kitchen in a dwelling and that the respondent has installed a video surveillance camera in the kitchen of the property, without the claimant ever having consented to the processing of their data or having signed any document in this regard”—file no. 1—.

The claimant provides an image of the camera, a conversation held with the respondent about the camera via WhatsApp, and an image of the rental receipt for the room with access to the kitchen (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 01/07/22 and 01/08/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), being recorded in the information system of this agency .

THIRD: On August 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On October 13, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP -provision of which the respondent was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made any allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

SIXTH: On 03/11/22, the corresponding announcement regarding PS/00466/2022 type of act “Agreement of Opening” was published in the BOE.

SEVENTH: Upon consulting the database of this Agency on 09/01/22, no allegations were recorded, nor has any corrective measure been adopted in this regard.

EIGHTH: On 28/04/23, a was issued proposing a sanction amounting to €4000, for the infringement of Article 6 GDPR, for having a camera inside the rented dwelling without a legitimate basis for doing so, proposing measures to correct the described situation.

Upon consulting the database of this agency, there is a record of two attempts at notification, which were returned by the Official Postal Service (for Not collected at the Post Office).

NINTH: On 13/06/23, the Proposal for Resolution associated with PS/00466/2022 was published in the BOE in accordance with the provisions of Article 44 of Law 39/2015 (October 1), after the notification at the respondent's address proved unsuccessful.

PROVEN FACTS

First: The facts arise from the complaint dated 22/06/22, through which the following is conveyed: “has rented a room with access to a kitchen in a dwelling and that the respondent has installed a video surveillance camera in the kitchen of the property, without the claimant ever having consented to the processing of their data or having signed any document in this regard”—file no. 1—.

Second: B.B.B., with DNI associated ***NIF.1, is identified as the main responsible party for the installation.

Third: The presence of a video surveillance camera inside the dwelling affecting areas reserved for the claimant is evidenced, without justified cause, proceeding to process their personal data.

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Fourth: The respondent has not made any allegations in the exercise of the right to defense, nor has the slightest explanation been provided regarding the presence of the device in question or the manner of informing about rights within the framework of the current GDPR.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

In the present case, the complaint dated 22/06/22 is examined, which presents the following main fact: “presence of a camera inside a rented dwelling in the kitchen-dining area, thereby eliminating its privacy by controlling their entries/exits without justified cause (...)—folio no. 1—.

Article 18, section 4 of the Spanish Constitution states: “The law shall limit the use of information technology to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights.”

Recital number 40 of the GDPR indicates that for a “processing to be lawful, personal data must be processed on the basis of one of the legal grounds established by law (...)”.

Therefore, the “data processing” carried out with the camera(s) installed inside the property must be justified under the so-called legal grounds, that is, it must be demonstrated that the processing is lawful according to the list of specific situations in which it is possible to process personal data.

The previously described facts may imply an infringement of Article 6 of the GDPR (Regulation 2016/679/EU, April 27).

The first requirement for the processing of personal data to be lawful is that it has a legal basis. It must be based on one of the six enabling grounds established in Article 6.1 of the GDPR, which states:

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1.

Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child (...)"

The general purpose of video surveillance cameras is the protection of property, persons, and facilities, although certain precautions must be taken when installing them, as their presence may conflict with other fundamental rights at stake.

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

III

In accordance with the evidence provided in the present sanctioning procedure, it is considered that the respondent has installed a camera for apparent security reasons that affects the area of free intimacy of their tenant, thereby impacting their personal data.

Residential lease contracts are regulated by the Urban Leasing Law 29/1994 of November 24 (LAU).

It should be noted that renting a property or part of it to a third party entails a series of rights and obligations for the parties, such that those related to the protection of personal data must also be taken into account, especially if the installation of recording devices affects the

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privacy of the same or a disproportionate processing of data in relation to the pursued purpose occurs.

Article 4, paragraph 11 of the GDPR states: "consent of the data subject": any manifestation of free, specific, informed, and unambiguous will by which the data subject accepts, either by a statement or a clear affirmative action, the processing of personal data concerning them (...)" (*the bold text belongs to this agency).

With the total or partial transfer of the property, the notion of "personal and domestic sphere" is excluded, so it is not a case of exclusion from the scope of application of the GDPR; the presence of the camera must be in accordance with the pursued purpose, and the presence of the same cannot even be imposed through a contractual clause, as in this case the home is "a space in which the individual lives without necessarily being subject to social uses and conventions and exercises their most intimate freedom" (STC No. 22/1984, February 17).

The known facts constitute an infringement, attributable to the claimed party, for violation of the content of Article 6 of the GDPR, previously cited.

IV

Article 69 of the LOPDGDD (LO 3/2018) states:

1. During the preliminary investigation proceedings or when a procedure for the exercise of the sanctioning power has been initiated, the Spanish Agency for Data Protection may reasonably agree on the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data and the immediate obligation to comply with the requested right (...).

On the other hand, Article 64.1 e) of Law 39/2015 (October 1) states the following:

e) Provisional measures that have been agreed upon by the competent body to initiate the sanctioning procedure, without prejudice to those that may be adopted during it in accordance with Article 56.”

The installed camera is affecting an area reserved for the privacy of the tenant of the rented property, carrying out a continuous processing of their personal data and/or that of third parties, without the consent of the same being recorded or the reasons for the presence of the device in that area being explained, which constitutes a deviation from the primary purpose of such devices.

V

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9 (...).”

When motivating the sanction, it is taken into account that the individual does not have prior sanctions from this agency, although they have installed a device that affects the privacy of the complainant, potentially recording their conversations, affecting an area reserved for their personal and/or family privacy, being a measure disproportionate to the alleged pursued purpose, which denotes serious conduct in the described behavior, leading to the imposition of a sanction amounting to 4,000€, in accordance with the described facts, on the lower scale for this type of sanctions.

Given the absence of prior allegations regarding the set of described facts, the rental situation of a room in their property is taken into account, although the initial lack of adoption of measures in response to the complaint of the tenant of the property is also considered; these aspects are taken into account for the motivation of the administrative sanction.

VI

In the text of the resolution, the infringements committed and the facts that have led to the violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6 of the GDPR, classified under Article 83.5 a) of the GDPR, a fine of 4,000€ (Four Thousand euros).

SECOND: TO ORDER in accordance with Article 58.2 GDPR, in connection with Article 69 LOPDGDD, as a measure the removal of the device in question from inside the dwelling, granting a period of 15 working days from the day following the notification of this act, having to prove this fact with the corresponding evidence (e.g., photograph with date and time of the before/after of the uninstallation).

THIRD: TO NOTIFY this resolution to Ms. B.B.B.

FOURTH: To warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of the

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art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and

the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXX-XXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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